

TAB 11



Board of Education Report

File #: Rep-120-22/23, Version: 1

Request for Board Authority to Pursue a Waiver to a Portion of Education Code 45272(a)
through June 30, 2025
December 13, 2022
Personnel Commission

Action Proposed:

Authorize the Office of Government Relations in coordination with the Personnel Commission, to seek a two-year extension of temporary flexibilities to a portion of Education Code 45272 (a), so that hiring appointments may be made by schools from other than the first three ranks of eligible applicants on the eligibility list for certain classified school-based entry level positions. The current one-year waiver will expire on June 30, 2023.

Background:

Education Code 45272(a) reads:

(a) All vacancies in the classified service shall be filled pursuant to this article and the rules of the commission, from applicants on eligibility lists which, wherever practicable, as determined by the commission, shall be made up from promotional examinations, or appointments may be made by means of transfer, demotion, reinstatement, and reemployment in accordance with the rules of the commission. All applicants for promotional examinations shall have the required amount of service in classes designated by the commission or meet the minimum qualifications of education, training, experience, and length of service, which shall be determined by the commission to be appropriate for the class for which they have applied...Appointments shall be made from the eligibles having the first three ranks on the list who are ready and willing to accept the position.

This Board action seeks authorization to request an extension of an existing one-year waiver that provides temporary flexibilities to the last sentence “*Appointments shall be made from the eligibles having the first three ranks on the list who are ready and willing to accept the position.*”

At the Board’s December 7, 2021, meeting, the Board approved the Office of Government Relations (OGR) staff to seek a two-year waiver to a portion of Education Code 45272 (a) to the State Board of Education (SBE). OGR staff submitted for and obtained a waiver for the classifications of Building and Grounds Worker, Food Service Worker, and Special Education Trainee/Assistant. However, the SBE granted the waiver for one year, (since this was a new request), and recommended that the effectiveness of the waiver be studied. The conditions of the waiver also allowed Los Angeles Unified to submit for an extension if the waiver helped to increase the hiring rate of the selected classifications.

The process entailed in Education Code 45272(a) requires that offers of employment be made to the top three candidates on any such eligibility list before any other candidates on the list can be made offers of employment. The process of doing so results in numerous vacancies waiting to be filled at various school sites if the top three ranks of candidates are not available or have interviewed at other schools and accepted offers. The chart below provides the entry-level classifications that would be included and benefit from this waiver.

Number of Employees Hired

	Mar - June 2021	Mar - June 2022	# Positions	Existing Vacancies (as of 11-07-22)
Building & Grounds Worker	178	323	2,388	517
Food Services Worker	3	244	2,653	235
Special Education Asst./Trainee	96	166	6,462	569
Total:	277	733	11,503	1,321

If the State waiver is approved, school-based, entry-level vacancies such as the ones listed in the table above may be filled simultaneously at various schools throughout the District. Personnel Commission staff estimates granting principals access to the entire eligibility list would speed up the hiring process by three to four weeks for some schools. This flexibility would further reduce staffing shortages in hard to fill entry-level positions and alleviate the risk of losing candidates at the middle or bottom of the list because of extended waiting periods on the eligibility list.

In addition to maintaining the three classifications currently covered by the waiver, Personnel Commission staff requests to add Information Technology Support Technician, Office Technician, and Library Aide to the request for the extension of the current waiver. Currently, as indicated by the chart below, there continues to be significant vacancies for these classified positions which exceed the number of eligible candidates.

	# Positions	Vacancies
Information Technology Support Technician	433	51
Library Aide	520	138
Office Technician	1183	175

As required by the SBE waiver process, the Parent Advisory Committee and affected labor groups were consulted regarding this waiver request.

Expected Outcomes:

That the granting of a two-year waiver will result in faster job offers to fill vacancies at schools for more candidates.

Board Options and Consequences:

The Board may approve the proposal and the Office of Government Relations will proceed to seek the waiver from the SBE, as stated. The Board may elect not to approve the proposal and the rate of filling vacancies at schools will remain governed by three-ranks at a time, which will delay the hiring of qualified candidates for entry-level positions at school sites.

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Policy Implications:

If granted, the temporary waiver will modify the way in which hiring for entry-level classified candidates at school sites are prioritized, based on the candidates' position on the eligibility list. All candidates will be eligible for hire immediately.

Budget Impact:

Not Applicable

Student Impact:

Filling school-based vacancies faster will positively impact students as incumbents in these positions provide direct services for students.

Equity Impact:

Not Applicable

Issues and Analysis:

If a waiver is granted, the use of the waiver would be limited to entry-level positions for which an external recruitment is utilized to fill many vacancies. The rule of three ranks would still be followed for positions in non-school offices.

Attachments:

Not Applicable

Informatives:

Not Applicable

Submitted:

11/16/22

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